

Jeffrey Hiner v. Ford Motor Company, et al., 24CV-0603

Hearing: Motion to Compel Plaintiff's Deposition and Request for Sanctions

Date: September 2, 2026

On September 30, 2024, Plaintiff Jeffrey Hiner filed this action against Defendants Ford Motor Company (Ford) and Perry Auto Group (Perry) (collectively Defendants). The First Amended Complaint (FAC) alleges violations of the Song-Beverly Act, negligent repair, and fraudulent inducement—concealment.

Now before the Court is Ford's motion to compel Plaintiff's deposition and request for the imposition of sanctions against Plaintiff and his counsel of record in the amount of \$2,105. The motion to compel is denied as moot.

I. LEGAL STANDARD

Pursuant to Code of Civil Procedure, section 2025.450, subdivision (a)¹:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(Code Civ. Proc., § 2025.450, subd. (a).)

However, "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Where a motion to compel a party's appearance and testimony at deposition is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent, unless the court finds that the one subject to sanctions acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).)

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

II. DISCUSSION

On April 10, 2025, Ford served on Plaintiff's counsel a notice of deposition by email. (Matar Dec., ¶ 3, Ex. A, B.) The deposition was scheduled for June 27, 2025. (*Ibid.*) The transmittal email to Plaintiff's counsel requested that alternate dates be provided if the noticed date was not workable. (*Ibid.*) On June 24, 2025, Plaintiff served an objection to the notice asserting that the deposition had been unilaterally noticed for a date on which Plaintiff and/or Plaintiff's counsel were unavailable. (*Id.*, ¶ 4, Ex. C.)

Ford served an amended deposition notice on Plaintiff's counsel on September 29, 2025, for a deposition on November 13, 2025. (Matar Dec., ¶ 5, Ex. D, E.) Ford's transmittal email requested that alternate dates be provided if the deposition date did not work. (*Ibid.*) On November 11, 2025, Plaintiff served an objection asserting that the deposition had been unilaterally noticed for a date on which Plaintiff and/or Plaintiff's counsel were unavailable. (*Id.*, ¶ 6, Ex. F.)

Ford served a second amended notice of deposition on Plaintiff's counsel on November 11, 2025, for a deposition on January 21, 2026. (Matar Dec., ¶ 7, Ex. G, H.) Ford's transmittal email requested that alternate dates be provided if the deposition date did not work. (*Ibid.*) Plaintiff's counsel emailed Ford's counsel on December 3, 2025, confirming Plaintiff's availability for deposition on January 21, 2026. (*Id.*, ¶ 7, Ex. I.) "On January 15, 2026, Plaintiff served an objection and responded to Ford's Second Amended Notice of Deposition stating" that Plaintiff would be produced for deposition as noticed. (*Id.*, ¶ 8, Ex. J.)

On January 20, 2026, however, Plaintiff's counsel contacted Ford's counsel to cancel the deposition because of unforeseen circumstances and stated that the deposition would be rescheduled at a later date. (Matar Dec., ¶ 9, Ex. K.) Plaintiff also served an amended objection noting Plaintiff and Plaintiff's counsel unavailability on the noticed date due to scheduling conflicts. (*Id.*, ¶ 9, Ex. L.)

Mr. Matar appeared via Zoom on January 21, 2026, at 10:30 a.m. to conduct Plaintiff's deposition. (Matar Dec., ¶ 10) Neither Plaintiff nor his counsel appeared. (*Ibid.*) At or about 10:35 a.m., Ford's counsel called Plaintiff's counsel to inquire whether Plaintiff would appear for his deposition, and Plaintiff's counsel's office confirmed that Plaintiff would not appear. (*Ibid.*) Ford's counsel took Plaintiff's nonappearance at around 10:45 a.m. (*Ibid.*, Ex. M, N [billing invoice].)

In his opposition, Plaintiff argues the motion to compel is moot and should be denied because Plaintiff appeared for deposition on June 18, 2026, and the deposition was completed. Plaintiff's counsel explains that on April 17, 2026, his office wrote to Ford's counsel to advise that Plaintiff would be available for his deposition between June 4, 2026, and June 18, 2026, and requested that Ford select a date within that range. (Smith Dec., ¶ 5.) Plaintiff's counsel followed up on June 5, 2026, confirming that Plaintiff would be available on June 16, 2026, June 17, 2026, and June 18, 2026, and requested that Ford serve the notice for the agreed upon date. (*Id.*, ¶ 6.) On June 9, 2026, Ford's counsel advised Plaintiff's counsel that Ford would be available on June 18, 2026. (*Id.*, ¶ 7.)

Plaintiff further argues that sanctions under section 2025.450, subdivision (g)(1) are available only if the motion to compel is granted. Plaintiff also asserts Defendant suffered no prejudice because Plaintiff's testimony was taken on June 18, 2026, and no trial date has been set.

Ford contends that although Plaintiff "finally appeared for deposition on June 18, 2026, it does not excuse Plaintiff's obstruction and delay in meeting his discovery obligations." (Reply, p. 2, ll. 10-11.) Ford asserts that sanctions are appropriate and should be granted nonetheless. Citing *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702–03 and *RG Abrams Ins. v. L. Offs. of C.R. Abrams*, No. 221CV00194FLAMAAX, 2021 WL 4974049, at *5–6 (C.D. Cal. Aug. 19, 2021) argues that "Plaintiff's stonewalling and outright refusal to participate in the meet-and-confer process does not provide any 'substantial justification' against imposing sanctions." (Reply, p. 4, ll. 6-14.) The Court finds these authorities unpersuasive. Neither *Creed-21* nor *RG Abrams* addresses the circumstance presented here, where the deposition that was the subject of the motion has already been completed and there is no longer a need to compel the deposition.

Because Plaintiff's deposition has been completed, the motion to compel Plaintiff's deposition is denied as moot. Code of Civil Procedure section 2025.450, subdivision (g)(1) mandates the imposition of sanctions when a motion to compel a party's appearance and testimony at deposition is granted. Because the Court does not grant the motion, it lacks authority to impose sanctions under section 2025.450 subdivision (g)(1). (See *Van v. LanguageLine Solutions* (2017) 8 Cal.App.5th 73, 82, citing § 2025.450, subds. (a), (g)(1), (h) [section 2025.450 "provides for sanctions against a party which, among other things, 'fails to appear for examination' after a deposition notice has been served. (§ 2025.450, subd. (a).) But those sanctions are to be imposed '[i]f a motion [to compel] is granted....' "].)

Ford identifies no authority permitting sanctions under section 2025.450 absent the granting of a motion to compel. Ford's reliance on section 2023.030, subdivision (a) is unavailing. (Notice of Mot., p. 2, l. 17.) Sanctions for misuse of the discovery process under section 2023.030 must be "[t]o the extent authorized by the provisions governing a particular discovery method or another provision of the Civil Discovery Act." (See 2 Witkin, Cal. Evidence (6th ed. 2026) Discovery, § 262 [availability of sanctions].) Here, section 2025.450, subdivision (g)(1) conditions sanctions on the granting of the motion to compel, which did not occur. Ford also cites California Rules of Court, rule 3.1348(a). (Notice of Mot., p. 2, l. 18.) While Rule 3.1348(a) provides that "the court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though ... the requested discovery was provided to the moving party after the motion was filed", in this case the statute controls. (See *Hess v. Ford Motor Co.* (2002) 27 Cal.4th 516, 532 [If a rule promulgated by the Judicial Council is inconsistent with a statute, the statute controls].)

Based upon the foregoing, the request for sanctions is denied.